

Orders on I.A.No.1

1. The Learned counsel for decree holder has filed the instant application u/Sec.39 of CPC seeking transfer of Decree to Prl. Senior Civil Judge, Mysore to execute the decree as Judgment Debtor is residing and carrying out its business within the jurisdiction of aforesaid court.

2. Learned counsel for Decree Holder submitted that, judgment debtors resides and personally works for gain within the jurisdiction of above Court and therefore he prays for transfer of Decree.

3. Sec.39 of CPC enables the court which passed the decree send the decree to another court of competent jurisdiction for execution. Sec.39(a) of CPC enables the court which passed the decree may of its own motion send it for execution to any subordinate court of competent jurisdiction. The cause title of the Execution Petition and decree passed in OS No.1627/2014, reveals that JDR is in Vijayanagara Mysore. It is submittd that J.dr has not yet, deposited the award amount. Hence, following

:: ORDER ::

Acting U/Sec. 39(a) of CPC, the application filed by the Dhr u/Sec.151 of CPC is hereby allowed and the decree is hereby transfered to Prl. Senior Civil

Judge, Mysore for execution of decree
passed in OS No.1627/2014.

Office to send the records to above
court as per law.

Issue DTC.

XIV ACC& SJ Bengaluru.